

Memorandum of Understanding, Release, and Waiver

This Memorandum of Understanding, Release and Waiver (“Agreement”) is between the Brecksville-Broadview Heights City School District Board of Education (“Board” or “District”) and Leslie Labbe (“Employee” or “Ms. Labbe”) (collectively, the “Parties”).

WHEREAS, on or about April 26, 2016, Ms. Labbe was employed by the Board as the District’s EMIS Coordinator, at Step 1 of the applicable salary schedule, and at that time the position of EMIS Coordinator was included in the bargaining unit for the Brecksville-Broadview Heights Organization of Support Staff (“BOSS”);

WHEREAS, on or about August 1, 2016, the position of EMIS Coordinator was removed from the bargaining unit for BOSS and transferred into the Administrative Support group of employees, and effective August 1, 2016, Ms. Labbe moved to Step 2 of the applicable salary schedule;

WHEREAS, on or about February 2023, the Board determined that for its Administrative Support group, the District has discretion and authority to award credit for years of applicable school experience prior to employment with the District; and

WHEREAS, Ms. Labbe has seven (7) years of experience as an EMIS Coordinator in other public school districts prior to be hired by the Board in April 2016; and

WHEREAS, the Board would like to exercise its discretionary authority to acknowledge Ms. Labbe’s prior years of experience as a EMIS Coordinator, and Ms. Labbe is in support of the Board’s determination to exercise such authority; and

NOW THEREFORE, in consideration of the mutual promises, covenants, and undertakings set forth below, and other good and valuable consideration, the receipt and sufficiency of which each of the parties hereby acknowledge, the parties agree as follows:

- A. The Board of Education shall place Ms. Labbe on Step 16 of the EMIS Coordinator salary schedule, effective August 1, 2023.
- B. Ms. Labbe waives the right to bring any claim, demand, action, grievance, suit, administrative or other proceeding against the District, Board, its administrators, agents, employees, heirs and assigns (“Released Parties”) arising out of her employment in relation to her placement on any and all salary schedule(s) and/or the terms of this Agreement.
- C. Ms. Labbe further agrees not to initiate or participate in any legal action or arbitration, to the extent consistent with applicable law, against Released Parties in connection with any claims arising out of the same transaction or occurrence as the claims waived or released by her in this Agreement. Employee hereby acknowledges and agrees that she relinquishes her right to damages or recovery in connection with any case, grievance,

arbitration, administrative or court proceeding arising out of or relating to the same transaction or occurrence as any claim that is waived or released under this Agreement.

- D. This Agreement, the offer of this Agreement, and compliance with this Agreement shall not constitute or be construed as an admission by the Released Parties, or any of them individually, of any wrongdoing, liability, fault, or truth of the allegations made in any charge, demand, action, lawsuit, grievance, arbitration, or dispute of any nature. This Agreement shall not be admissible in any judicial, administrative or other arbitration, proceeding or cause of action to demonstrate Released Parties' liability or as an admission of Released Parties' liability.
- E. The Parties acknowledge that this Agreement has been voluntarily entered into of their voluntary free will, and not under any duress. The Parties declare that the terms of this Agreement have been completely read, are fully understood, and are voluntarily accepted.
- F. This Agreement sets forth the entire agreement among the Parties and supersedes any prior discussions, negotiations, or representations among them regarding its subject matter. No additions or other changes to this Agreement will be made or be binding on any Party unless made in writing and signed by each Party to this Agreement. The Parties have not been influenced to sign this Agreement by any statement or representation not contained in this Agreement.
- G. By signing below, the parties acknowledge and agree to the above terms conditions and agree to be legally bound by said terms.

IN WITNESS WHEREOF, the parties have duly executed this Agreement on the date set forth below with their respective signatures.

**Brecksville-Broadview Heights City
School District Board of Education**

Employee

Superintendent (date)

NAME (date)

Treasurer (date)

Board President (date)